IN THE HIGH COURT OF ORISSA AT CUTTACK
ABLAPL No.12126 of 2026
CNR No. ODHC010809852026

Siba @ Shiba Nayak **.....** ***Petitioner***

Represented by Adv. -
Amlan Shakti Paul

-versus-

STATE OF ODISHA **.....** ***Opposite Party***

Represented by Adv.
– S.C. Pradhan, ASC

CORAM:
MR. JUSTICE ADITYA KUMAR MOHAPATRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through Hybrid Arrangement (Virtual /Physical Mode).

2. Heard learned counsel for the Petitioner and learned Additional Standing Counsel for the State. Perused the Anticipatory Bail Application as well as the F.I.R.

3. This is an application under Section 482 of the B.N.S.S., 2023 filed by the Petitioner for anticipatory bail, involving offence punishable under Section 309(6) of B.N.S. in C.T. Case No.2521 of 2026 in the Court of learned J.M.F.C.-V, Bhubaneswar arising out of Bharatpur P.S. Case No.858 of 2026.

4. Learned counsel for the Petitioner at this juncture submitted that the Petitioner does not wants to press this application and seeks liberty to surrender before the court below and move an application for bail.

5. Considering such submissions, the Petitioner is permitted to surrender before the learned court in seisin over the matter within a period of three weeks from today and move an application for bail. In such eventuality, the learned court in seisin over the matter shall do well to release the Petitioner on bail on such terms and conditions as the learned Magistrate may deem just and proper. Violation of any of the terms and conditions shall entail cancellation of the bail.

6. It is further directed that the bail granted to the Petitioner shall be subject to the verification of his criminal antecedent. In the event, the Petitioner is having any similar criminal antecedent, then this order shall stand automatically revoked.

7. The ABLAPL is disposed of accordingly.

Urgent certified copy of this order be granted as per rules.

(A.K. Mohapatra)
Vacation Judge

Sisir

Signature Not Verified
Digitally Signed
Signed by: SISIR KUMAR SETHI
Reason: Authentication
Location: ORISSA HIGH COURT
Date: 24-Oct-2026 18:38:46